

HOUSE No. 2102

The Commonwealth of Massachusetts

PRESENTED BY:

Michael J. Finn

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to acts of violence.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael J. Finn</i>	<i>6th Hampden</i>	<i>1/17/2025</i>

HOUSE No. 2102

By Representative Finn of West Springfield, a petition (accompanied by bill, House, No. 2102) of Michael J. Finn relative to compensation to persons injured by acts of violence of patients, prisoners, or courtroom violence. Labor and Workforce Development.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1876 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to acts of violence.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1: Section 58 of Chapter 30 of the General Laws, as appearing in the 2020
2 Official Edition, is hereby amended by striking out the fourth paragraph and inserting in place
3 thereof the following:

4 Notwithstanding the provisions of this section, an employee who, while in the
5 performance of duty, receives bodily injuries resulting from acts of violence of patients or
6 prisoners in the employee's custody or, in the case of a court officer, receives bodily injuries
7 resulting from acts of violence in the courtroom or public areas, holding areas and other
8 designated areas of the courthouse or from subduing or apprehending escaping prisoners or, in
9 the case of a correctional employee, receives bodily injury as a result of acts of violence either in
10 the performance of normal duty or while performing assigned duty outside of a correctional

11 facility and who as a result of such injury would be entitled to benefits under said chapter one
12 hundred and fifty-two, shall be paid the difference between the weekly cash benefits to which he
13 would be entitled under said chapter one hundred and fifty-two and his regular salary, without
14 such absence being charged against available sick leave credits, even if such absence may be for
15 less than eight calendar days' duration.

16 SECTION 2: Chapter 152 of the General Laws, as so appearing, is hereby amended by
17 adding the following section:

18 SECTION 86: Correctional employees receiving bodily injuries resulting from acts of
19 violence either in performance of normal duty or while performing assigned duty outside of a
20 correctional facility shall be presumed eligible for benefits under chapter 152.